



BANGALORE DEVELOPMENT AUTHORITY

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ



USER MANUAL

Layout Approval
Town Planning Section

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1. INTRODUCTION

Bangalore Development Authority (BDA) is established under the Bangalore Development Authority Act in 1976. The Authority functions as a Planning Authority declared under Section 4-A of the Karnataka Town & Country Planning (KTCP) Act, 1961. As per the KTCP Act, Master Plan for the Local Planning area of Bangalore is prepared once in ten years. Any permission for development of land is provided under Section 17 of the KTCP Act and Section 32 of the Bangalore Development Authority Act, 1976, Revised Master Plan (RMP -2015) of Bangalore in force and the Zonal Regulations made thereunder.

The regulations for approval of layout as per RMP 2015 and Zonal Regulations of Bangalore is as follows :

“1.1 Permissible Land uses in Residential category

R	Residential land uses
1	Plotted residential developments
2	Villas, semi detached houses
3	Apartments, Hostels, Dharmashala
4	Multi Dwelling Housing, Service Apartments.
5	Group Housing (Development Plans)

1.2 Subdivision regulations - Residential

a. Road widths: The minimum width of road shall not be less than 9.0 m and the road widths shall not be less than the plot widths facing the respective road. Every Fourth road in a layout shall have a minimum of 12.0 m width.

b. Area for Residential development: Apart from the provision for amenities and open spaces, the area for residential development shall be up to a maximum of 55 % of the total land area. The area earmarked for residential development shall be upto a maximum of 55% of the total land area. A maximum of 3% of the total area from out of percentage of residential area may be earmarked for commercial use in one or two blocks only.

c) Parks / Open spaces and Playgrounds: Parks / Open spaces and Playgrounds shall not be less than 15 % of the total land area. This shall be relinquished to the Authority (free of cost and free of encumbrance) and if required, the authority may relinquish the area for maintenance to the resident's welfare association. If the land is not maintained up to the satisfaction of the authority, it shall be resumed back by the authority.

d) Civic amenities and Roads:

i) After making provision for Parks and roads in the layout, the balance portion of land shall be earmarked for civic amenity site only. Such CA site shall be relinquished to BDA free of cost and free of encumbrance.

ii) If the area that remains after making provision for road and park is less in extent, then the authority shall have the discretion to earmark such land for park.

iii) Whenever the total area proposed for formation of layout exceeds 10 acres, then adequate extent of land may be earmarked for provision/installation of utilities like transformer, sewage treatment plant, overhead water tank, bus bay/shelter etc. This area may be taken in to calculation under either CA or Park as the case may be. Decision of the Authority in this regard shall be final.

iv) CA sites owned by Bangalore Development Authority (BDA) could be used for any purpose irrespective of the land use classification in the Revised Master Plan-2015. But, such use shall be based on the need of the locality and the Authority has to take a conscious decision in this regard. This clause is operative till amendments to relevant Acts & Rules are made.

1.3 General conditions applicable for sub-division of layout

- The Authority reserves the right to modify the layout submitted by the applicant / owner and may impose any condition either from planning point of view or in the interest of public.
- If the applicant desires for release of sites in two stages, the Authority may permit 40% of the sites in the first stage. The remaining 60% of sites shall be released only after the completion of all the development works in the layout.
- The approval of Layout Plan is subject to the condition that the proposal satisfies all the requirements stipulated under section 17 of K.T.C.P Act, 1961 and section 32 of BDA Act, 1976.

1.4 Regulations for non-residential layout plan

Sanction of layout plans for non residential purpose shall be subject to the following conditions:

- i. 10 % of Total area shall be earmarked for Park and Civic amenities (ratio to be decided by authority).
- ii. Minimum width of road shall not be less than 12.0 m.
- iii. 5 % of the total area shall be reserved for parking purpose.
- iv. Parks, CA and roads shall be handed over to Authority as per section 32 of BDA Act, 1976."

Note: Within the demarcated buffer for the valley the following uses are allowed:

- i. In case of water bodies a 30.0 m buffer of 'no development zone' is to be maintained around the lake (as per revenue records) with exception of activities associated with lake and this buffer may be taken into account for reservation of park while sanctioning plans.
- ii. If the valley portion is a part of the layout/ development plan, then that part of the valley zone could be taken into account for reservation of parks and open spaces both in development plan and under subdivision regulations subject to fulfilling section 17 of KTCP Act, 1961 and sec 32 of BDA Act, 1976."

2. INFORMATION FOR APPLICATION FORM

Link of Application Form (English):

<https://bdabangalore.org/uploads/files/EoDB/TPM/ApplicationFormLayoutApproval.docx>

Application Form is to be submitted to Commissioner, Bangalore Development Authority.

The following information is required in Application Form for layout plan approval proposal:

1. Applicant Details

- i. Name of applicant / Firm
- ii. Name of GPA holder if applicable
- iii. Aadhar number of authorised signatory
- iv. Address for correspondence

- v. Email Id
 - vi. Mobile Number
 - vii. Phone Number
- 2. Land Details**
- i. Property ID Number
 - ii. Site Number
 - iii. Survey Number
 - iv. Layout / extension
 - v. Village / Town / City
 - vi. Taluk
 - vii. District
 - viii. Extent
- 3. Schedule of Site / Survey number surrounding the proposed layout**
- i. East
 - ii. West
 - iii. North
 - iv. South
- 4. Land use of the proposed Layout**
- Link of Master Plan is available at [ಪರಿಸ್ಥಿತಿ ಮಹಾಯೋಜನೆ-2015 \(bdabangalore.org\)](http://bdabangalore.org)
- i. Residential / Commercial / Industrial
 - ii. Any other use to be specified
 - iii. Land use as per Master Plan
- 5. Details of approach road connecting the land (Tick whichever is applicable and specify the road width in metres)**
- i. National Highway
 - ii. State Highway
 - iii. Major District Road
 - iv. Other District Road
 - v. Village Road
 - vi. Layout Road
 - vii. Others
- 6. Details of conversion of land (Please specify conversion order number and date)**
- i. Conversion Order number and Date
- 7. Details of the topography of the land (Tick whichever is applicable)**
- i. Flat
 - ii. Elevated
 - iii. Low-lying
 - iv. Rocky
 - v. Marshy land
 - vi. Sloping terrain
 - vii. Nala
 - viii. Any other
- 8. Details of Land Use Analysis (Please specify the extent and percentage of the proposed land use in the layout)**

S.N.	Land use	Extent (in sq m)	Percentage
1	Residential		
2	Commercial		

3	Industrial		
4	Civic Amenities		
5	Parks and Open spaces / Playground		
6	Roads		
7	Public Utilities		
8	Others		
	Total		

9. Site Dimension and Number (Please specify the number and extent of sites against each dimension)

Dimension	9 x 12	12 x 18	Other
Number			
Extent			

10.If the change of land use is obtained, details of the same (Specify the Government Order Number and Date)

3. DOCUMENTS CHECKLIST

Following documents is required to be submitted with application form for layout approval.

1. Registered documents that establish ownership (Sale Deed / Gift Deed / Partition Deed / Release Deed as applicable)
2. Mutation copy
3. R.T.C
4. Conversion order
5. Survey Sketch, Atlas, Tippani, Akaarbhandh, Village map from Dept of Land Records
6. Encumbrance Certificate in Form No.15 / 16 (Updated)
7. Site Plan with Google Map showing the existing developments in the surrounding area of the proposed land and details of HT Line, valley, hilly terrain and water body
8. Total Station survey map with contours
9. Three copies of the proposed layout plan
10. Copy of Aadhar Card of authorised signatory
11. Recent Tax paid receipts
12. If the area is more than 10 acres / 40,468 sq m, then the applicant has to obtain NOC from Karnataka State Pollution Control Board
13. Any other documents required by the Authority

(Applicant will be notified in case of any additional documents/ information through Notice/Letter, applicant must re-submit the said documents at the earliest)

4. FEE STRUCTURE AND CALCULATION MATRIX

- **Scrutiny fee**

One Rupee per square metre of total land area is to be remitted by the applicant along with the Application Form. This fee is non-refundable. Following are the details for remittance of Scrutiny Fee.

- Name: 'Commissioner, BDA, Bangalore'
- Account No. 2828201002001
- CANARA BANK
- IFSC Code CNRB0002828

Receipt of the payment made to BDA needs to be attached with the Application Form.

- **Betterment fee**

This fee levied is under Rule 37-A of the Karnataka Planning Authority Rules. The fee is prescribed based on land use and market value of land determined under Karnataka Stamps Act, 1957 per sq. m of non-agricultural land vide Notification No. UDD 23 TTP 2020 (E) dated 21-06-2021.

Percentage of market value per sq. m of non-agricultural land			
Residential	Commercial	Industrial	Others
0.2% subject to a minimum of Rs. 40/m ²	0.3% subject to a minimum of Rs. 60/m ²	0.50% subject to a minimum of Rs. 100/m ²	0.2% subject to a minimum of Rs. 40/m ²

(will be notified via Notice/Letter by BDA, the applicant will have to pay the Betterment fee prescribed in the notice through remittance challan and the receipt needs to be submitted to Town Planning Section) **Surcharge for the purpose of formation of ring road**

This fee is prescribed under Rule 37-C of the Karnataka Planning Authority Rules. The fee applicable is 10% of the fee collected as Betterment Fee under Rule 37-A of the Karnataka Planning Authority Rules.

▪ **Surcharge for the purpose of establishing Mass Rapid Transit System**

This fee is prescribed under Rule 37-C of the Karnataka Planning Authority Rules. The fee applicable is 50% of the fee collected as Betterment Fee under Rule 37-A of the Karnataka Planning Authority Rules.

▪ **Supervision charges**

This charge is applicable at the rate of Rs.2,00,000/- for every acre of land.

One acre is 4046.80 sq m.

▪ **Fee for rejuvenation of lakes and water bodies**

As per Section 18(1-A) of the KTCP Act, lake rejuvenation fee is levied at the rate of Rs.25 per square metre of land.

Note: In addition to the above fees, CGST at the rate 9% of the total amount and SGST at the rate of 9% is applicable.

▪ **Cess for the purpose of carrying out a water supply scheme**

This fee is prescribed under Rule 37-C of the Karnataka Planning Authority Rules. The fee applicable is 10% of the fee collected as Betterment Fee under Rule 37-A of the Karnataka Planning Authority Rules.

▪ **Cess for the purpose of improving slums**

This fee is prescribed under Rule 37-C of the Karnataka Planning Authority Rules. The fee applicable is 5% of the fee collected as Betterment Fee under Rule 37-A of the Karnataka Planning Authority Rules.

Illustration:

Based on the following assumptions, the fees applicable are calculated as below:

Proposed area for layout : **01 acre** / 4046.80 per sq m

Proposed guidance value : Rs. 1,00,00,000 per acre of agricultural land

Guidance value calculation for areas more than 01 acre

Industrial	Additional value of 55% of base rate of agricultural land
Residential	Additional value of 65% of base rate of agricultural land
Commercial / Non-residential	Additional value of 80% of base rate of agricultural land

For non-agricultural land : agricultural land value + 65% of agricultural land value

: 1,00,00,000 + (1,00,00,000 x 0.65)

Fee applicable per acre : Rs. 1,65,00,000 per acre

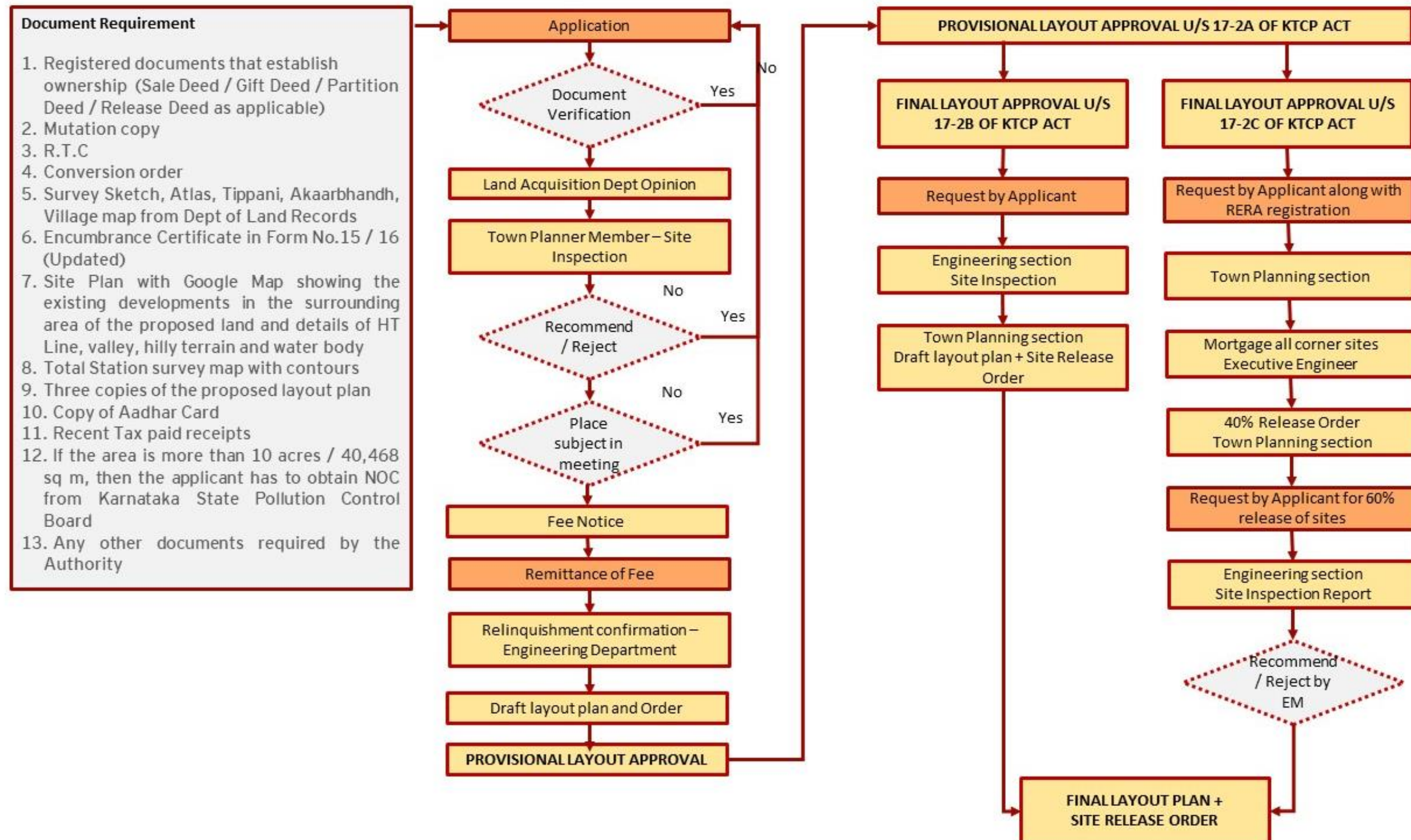
: 1,65,00,000 / 4046.80

Fee applicable per sq m : Rs. 4077.20

Sl No	Details of fees	Valuation criteria	Calculation	Value in Rupees
1	Scrutiny fee	Rs.1.00 sq m	1 x 4046.80	4046.80
2	Betterment fee	0.2% of land guidance value per sq m subject to a minimum of Rs. 40/m ²	40 x 4077.20	1,61,872.00
2	Surcharge for the purpose of formation of ring road	10% of Betterment Fee	0.10 X 1,61,872	16,188 .00
3	Surcharge for the purpose of establishing Mass Rapid Transit System	50% of Betterment Fee	0.50 x 1,61,872	80,936.00
4	Fee for rejuvenation of lakes and water bodies	Rs.25.00 per sq m	25 x 4046.80	1,01,170.00
5	Supervision charges	Rs. 2,00,000.00 per acre	2,00,000 x 1	2,00,000.00
6	Total			5,48,024.80
7	GST 18%	CGST 9%	.09 x 5,48,024.80	49,322.23
		SGST 9%	.09 x 5,48,024.80	49,322.23
8	Cess for the purpose of carrying out a water supply scheme	10% of Betterment Fee	0.10 x 1,61,872	16,187 .00
9	Cess for the purpose of improving slums	5% of Betterment Fee	0.05 x 1,61,872	8,093.60
10	Approximation			7.14
	Total			6,54,770.00

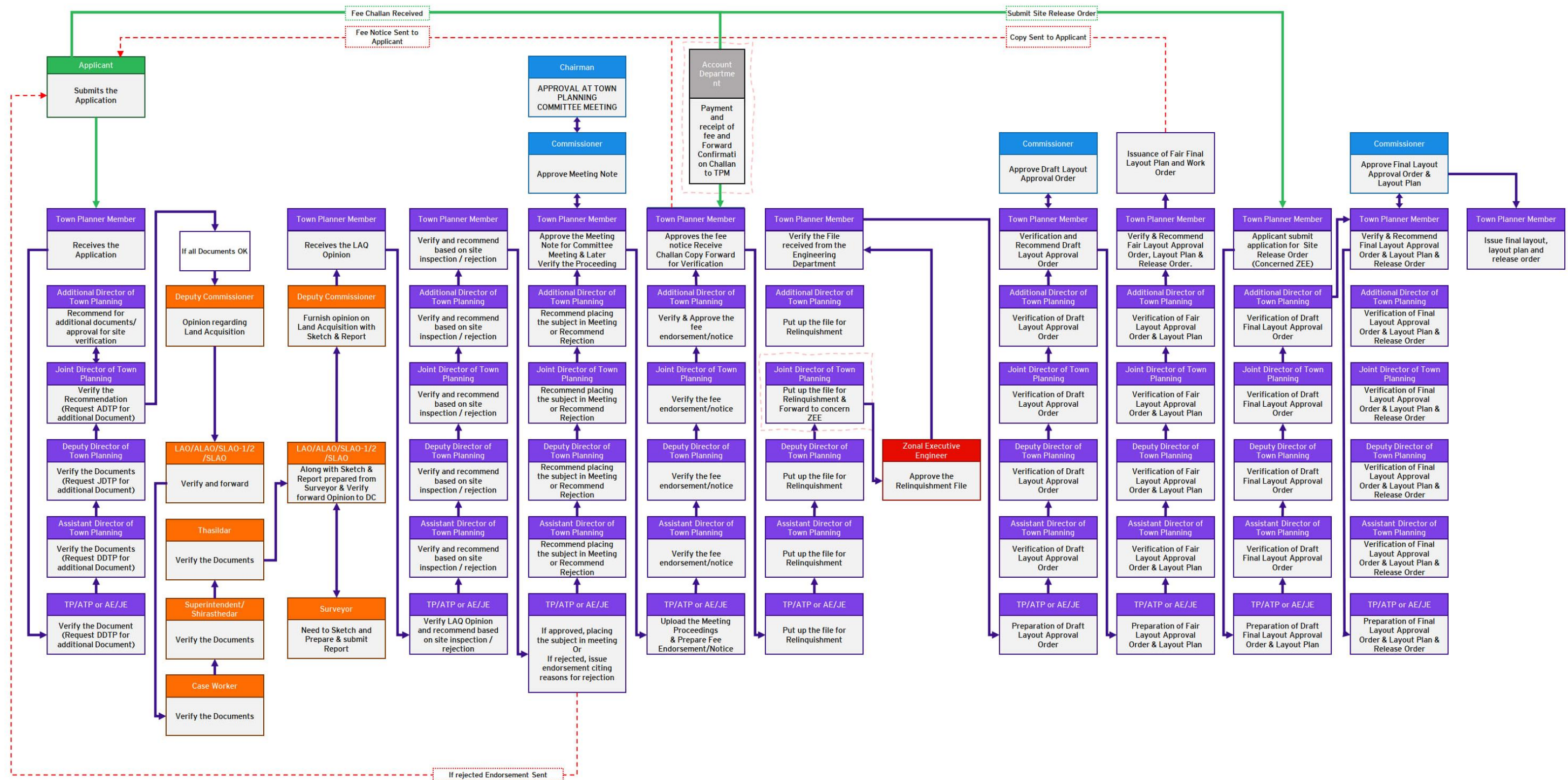
5. PROCEDURE (PROCESS FLOW)

User end



Department End

For Provisional Approval of Layout



5.1 DOCUMENTS TO BE SUBMITTED BY APPLICANT FOR FINAL APPROVAL OF LAYOUT U/S 17(2-B) OF THE KTCP ACT

At the stage of final approval of layout, the agencies competent for issue of Completion Certificate for the development works to be completed are listed as below:

Development works to be completed	Agency for issue of Completion Certificate
Formation, metalling, asphaltting / concreting of roads and cross-drainage works along with pavements, construction of storm water drains	BDA (Engineering section)
Completion of water supply works including laying of water supply pipelines, construction of water tank /s or individual connections to building sites	BWSSB limit : BWSSB Other Urban areas : Karnataka Water Supply and Drainage Board (KUWS and DB)
Completion of underground drainage works including laying of underground drainage lines, construction of sewage treatment plant / soak pit and individual connections to building sites	Outside Urban limits : Rural water supply Dept
Development of parks and playgrounds and open spaces	BDA (Engineering section)
Laying out of underground cables (if developer intends to lay underground cables)	BESCOM
Completion of electrical work including erection of street lighting poles, erection of transformers and connections for street lighting	BESCOM
Rain water harvesting	BDA (Engineering section)
Tree planting	BDA (Engineering section)

6. TIMELINE FOR SERVICE

The time limit for the deemed approval is six months if no action is taken by the authority from the time of application for the service.

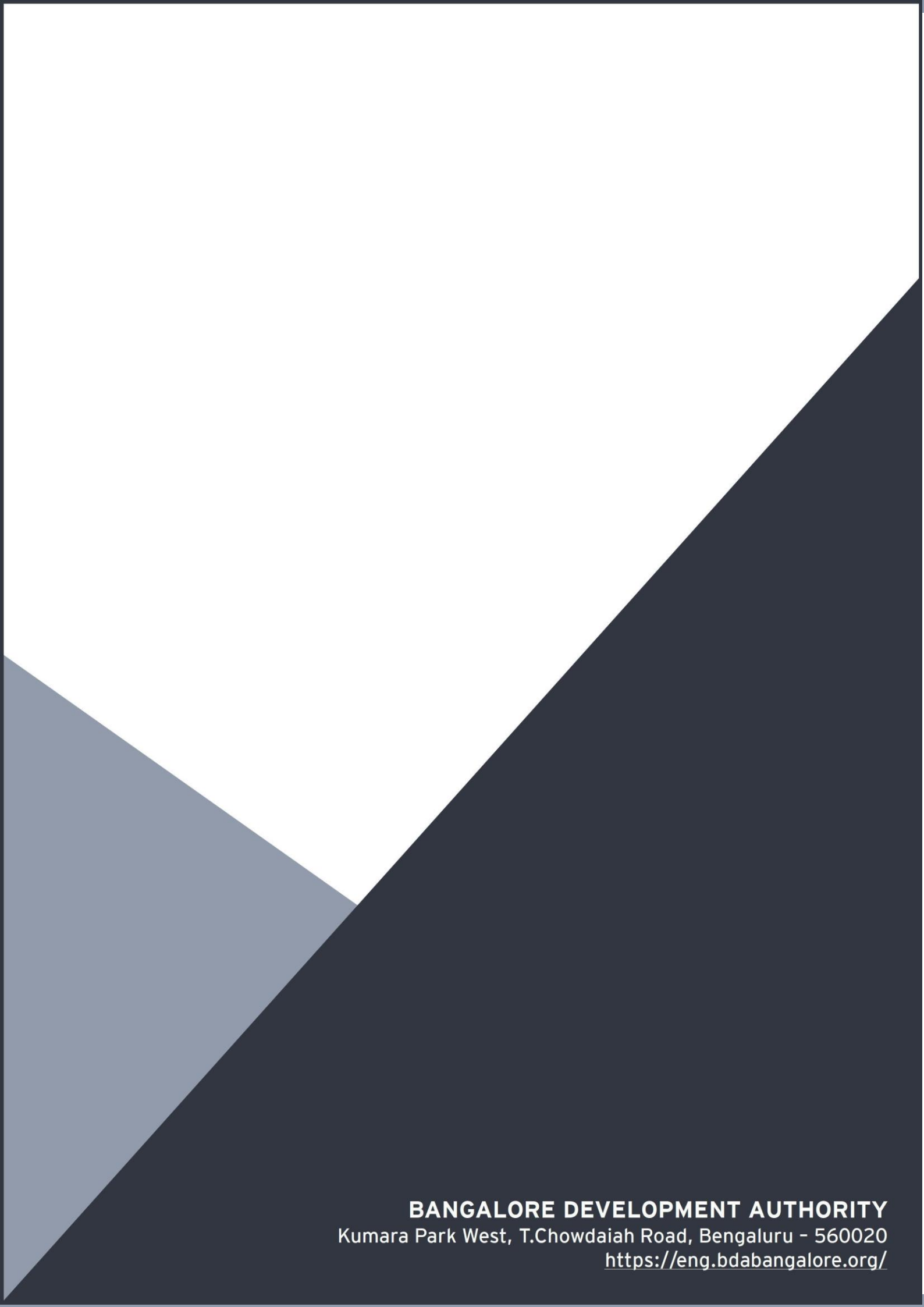
Note: Approval of layout is subject to the decision of the Town Planning Committee.

7. GRIEVANCE MECHANISM

Designated Officer: Town Planner Member
Phone No: 080 2344 3206/2336 8615 (Extn. 289)
Email id: tpm@bdabangalore.org

Competent Officer: Commissioner
Phone No: 080 23360843
Email id: commissioner-bda@ka.gov.in

Appellate Authority: Additional Chief Secretary, Urban Development Department
Phone No: 080 22035075
Email id: acsuddoffice@gmail.com
Official Website: [ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ \(bdabangalore.org\)](http://ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ (bdabangalore.org))



BANGALORE DEVELOPMENT AUTHORITY

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